

Prince Sharma and 7 Others v. State of U.P. and another

High Court of Judicature at Allahabad · Division Bench · 6 February 2023 · Writ - C No. 920 of 2023 · **Writ disposed; NPCL to redress connection grievance within four weeks.**

HEADNOTE

Writ seeking a mandamus for 2 KW connections disposed of, without any opinion on the merits, with a consensual direction to the Vice President, NPCL, to look into the grievance and redress it within four weeks of production of a certified copy.

FACTUAL SUMMARY

In June 2022 Prince Sharma and seven others applied to Noida Power Company Limited for fresh 2 KW electricity connections on their respective plots. The connections remained unreleased, and in 2023 they petitioned the Allahabad High Court for a direction to grant them on payment of usual charges. They invoked section 43 of the Electricity Act, 2003 and the stated liability of Rs.1,000 a day after one month. The State submitted that the Act and the U.P. Electricity Supply Code, 2005 contain the remedy.

HOLDING-UNITS

HOLDING-UNIT · EA2003::43

fresh-connection grievance left to the licensee

HOLDING

Without expressing any opinion on the merits, and with the consent of the parties, the writ is disposed of with a direction to the Vice President, Noida Power Company Limited, Knowledge Park-IV, Greater Noida, to look into the petitioners' grievance for release of the 2 KW connections and to redress it within four weeks from production of a certified copy of the order. ¶ 2

PRINCIPLE TAGS

section-43-duty-to-supply-subject-to-act-and-code

The petitioners invoked the one-month duty under section 43. The Court expressed no opinion on that duty. In view of the submission that the Act and the U.P. Electricity Supply Code, 2005 are self-contained, and with the parties' consent, it directed the licensee to look into and redress the grievance within four weeks. ¶ 2

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER SECTION 43 REQUIRED NPCL TO RELEASE THE 2 KW CONNECTIONS WITHIN ONE MONTH AND ATTRACTED THE STATED PER-DAY LIABILITY

The Court disposed of the writ without expressing any opinion on the merits and left redress to the licensee. ¶ 2